

- SEE ALSO NEWSLETTER OF MARCH 21, 2025

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Provision of January 16, 2025

Register of provisions

n. 7 of January 16, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD TO the complaint submitted by Mr. XX pursuant to

Article 77 of the Regulation against

Autotrasporti Cuccu Riccardo S.r.l. Unipersonale;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's regulation n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The initiation of the preliminary investigation following the submission of the complaint.

With a complaint submitted on 09/23/2024, Mr. XX

complained of a violation of the regulations regarding

the protection of personal data by

Autotrasporti Cuccu Riccardo S.r.l. Unipersonale (hereinafter "the Company"), former employer,

stating that it had installed a

geolocation system on the vehicle used,

in the performance of work activities, without

having previously provided him with the information referred to in

Article 13 of the Regulation and without having activated the

guarantee procedure referred to in Article 4 of Law

n. 300/1970 (Workers' Statute).

The Company was invited to provide observations regarding the facts subject to the complaint, with the request

for information made pursuant to Article 157 of the

Code to which it responded, with a note dated 02/10/2022, stating that:

- "The ITL of Cagliari-Oristano, at the request of

the undersigned on March 15, 2021, authorized, with

provision of May 19, 2021, the installation and

use of the satellite system on board the

company vehicles. This provision, in

particular, authorized the installation for the

purposes indicated in the application and specifically for the

protection of company assets, to ensure

safety at work and for organizational and

productive needs";

- "Autotrasporti Cuccu Riccardo s.r.l., having

received the authorization from the ITL, provided all employees with the information required by Article 13 of the Regulation. This information is still prominently displayed on the company bulletin board to which all workers of the company must access every day to acquire the necessary documentation for the performance of the service (...). All drivers have seen the information. No simplified information has been installed, as of now, on the individual vehicles”;

- “It should be noted that the company's drivers are not authorized to use the vehicle outside of working hours. These are, in fact, tractors with semi-trailers”;
- “The data recorded by the system is processed, in compliance with the provisions contained in Article 5 of Regulation EU 2016/679, in a lawful, transparent and correct manner to achieve the above purposes. There are also the conditions of lawfulness provided for by Article 6 of the aforementioned Regulation”;
- “Considering that the authorization for the installation of satellite localization systems and equipment was requested primarily for the purpose of protecting company assets and safeguarding employees, also with reference to the organization of work, the geographical detection of the company vehicle is active even during breaks from work”;
- “The recorded data, moreover, can be attributed to the individual employee only for the time during which he performs work activities. Upon termination of service, once the personal card is removed, no data of the worker is recorded or saved.”

In light of the statements made and the documentation produced, it was deemed necessary to acquire further elements of evaluation regarding the processing of personal data of employees, carried out through the satellite detection system. Therefore, an additional request for information was made, pursuant to Article 157 of the Code, which, although duly notified to the Company's PEC address, remained unanswered (note of 03/25/2022). It was then decided to notify, through the Privacy and Technology Fraud Protection Unit of the Guardia di Finanza, the act of initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code, for the violation of Article 157 of the Code.

At the same time, the aforementioned Unit proceeded to collect the additional requested information, drafting a specific report of operations carried out (drafted on June 21 and 22, 2022), from which it emerged that:

- “the company has equipped itself with the geolocation system WAY provided by the operator TIM since

May 2021. The reasons for using the geolocation system are for the protection of company assets, safety needs at work, and organizational and productive needs. In

****Data****: March 15, 2021, the Company submitted a request for authorization for the installation and use of satellite location systems and equipment to the Labor Inspectorate of Cagliari, which issued the authorization on May 19, 2021;

- Regarding the lack of response to the request for information, "after consulting with the lawyer (...), it was assessed that it was not necessary to respond, as a duplicate of the previous one was received on January 11, 2022, to which responses had already been sent";
- "The Company employs approximately 70 employees, of which 50 are drivers. Typically, each is assigned the same vehicle (tractor). All vehicles are equipped with the WAY system";
- "All drivers have been informed about the use of the WAY system and its functionalities through a specific notice posted on the bulletin board (...)"
- "The system locates the company tractors as needed; the data collected pertains to the employee using it only while performing work activities. The association occurs through the interfacing of the tachograph system provided to the drivers and the WAY system. (...)"
- "As stated in the authorization request (...), the detection/location of the tractors is not direct but delayed by 3/5 minutes."

During the inspection, access was made to the web platform to verify the functionalities of the system. It was found that "the map shows the positions of the vehicles, identified solely by the license plate number. Among the functionalities of the system, those related to the association of the driver's name and surname with the vehicle used were highlighted. In fact, it was found that the driver data collected by the system did not correspond to the actual driver but to the data of the employee to whom the vehicle was associated at the time of installation" (minutes of June 22, 2022).

Additionally, documentation related to the contract signed with TIM regarding the rental of the geolocation system named "TIM Your Way," dated April 10, 2021, was acquired. With subsequent communication dated July 5, 2022, the Company informed the Authority that it had procured the window stickers bearing the simplified notice to be affixed to company vehicles and transmitted a copy of the designation of the data processing manager pursuant to Article 29 of Legislative Decree 196/2003 (in the formulation prior to the amendments introduced by Legislative Decree 101/2018) concerning the company WAY s.r.l., signed on May 3, 2021.

****2. The investigation against WAY s.r.l., the supplier of the geolocation system.****

In order to conduct a comprehensive assessment of the processing methods carried out, an investigation was also initiated against WAY s.r.l., identified as the provider of the geolocation service, as well as the data processing manager. Based on the documentation transmitted by WAY s.r.l. on October 24, 2022, and the inspection findings conducted by the aforementioned Unit at the company's premises on March 8 and 9, 2023, it was found that:

- "TIM S.p.A. is the signatory of the contract with the Client (in this case, Autotrasporti Cuccu Riccardo S.r.l.) and therefore is the Data Processor with respect to the Client, who is identified as the Data Controller. W.A.Y. S.r.l., as a supplier of TIM S.p.A., is appointed by the latter as the Second Data Processor with the authorization of the Data Controller, as can be inferred from the commercial documents signed by TIM S.p.A. and the Client";
- The types of data processed include, in addition to location data (vehicle position), also telemetry data (speed, cumulative kilometers traveled), vehicle status data, tachograph data related to the DIN (Driver Identification Number), messaging data exchanged between the web platform and the onboard device, and any additional information that the client wishes to enter autonomously, such as the driver's name and license number;
- "The system is designed to activate, upon request from the user, a specific additional function that allows the vehicle driver (the so-called "Interested Party") to deactivate the tracking device of the vehicle itself (the so-called "privacy button"), which is currently not requested and therefore not implemented for the Client in question. Furthermore, the Web platform allows the Data Controller to deactivate the tracking device of a vehicle or other components of the service independently through the Web platform interface or by requesting assistance from the service provided by the Second Data Processor. It should be noted that, even in this case, this option has not been requested and therefore

has not been implemented for the Client in question";

- "The Web platform allows for the registration, in specific fields of its input forms, of data concerning the Interested Party (by way of example: name, surname, license number, etc.)."

****3. The initiation of the procedure for the adoption of corrective and sanctioning measures by the Authority.****

Following the examination of the statements made and the documentation acquired, the Office proceeded to notify the Company of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code (note dated June 16, 2023), for the violation of Articles 5, paragraph 1, letter a), c), e), 13 and 88 of the Regulation.

The Company, on 14/07/2023, sent its defensive statements based on Article 18 of Law No. 689/1981, noting that:

- "The technical characteristics of the System do not allow for the direct association of the data collected through the geolocation system with the driver of the vehicle whose position is consulted via the System. In fact, although the System bears the label 'Driver', the data entered therein does not pertain to the actual driver of the vehicle, but rather to the collaborator to whom the vehicle is assigned for the purpose of entering the car into the System at the time of its installation. The assignee of the vehicle does not typically coincide with the driver, as the System requires the entry of a name, and the Company has opted to randomly insert the names of its collaborators (...);"

- "Given the absence in the System of any indication of personal data that would allow for the direct identification of the drivers of company vehicles, such identification only occurs when specific events take place (for example, violations of the Highway Code, accidents, damage and/or theft of the vehicle – 'Anomalous Events'). To this end, it is necessary for the Company to manually query a different database by entering the license plate number, as it has not activated the interface tool on its systems";

- "It should finally be noted that the localization of vehicles does not occur in real-time, but is delayed by 3/5 minutes, and that access to the System is reserved only for (i) prior authentication via password by two employees of the Company authorized to process data through contract and who have been given appropriate instructions, (ii) technical personnel responsible for maintenance and revision interventions, who have been provided with passwords not enabled for viewing recorded images";

- "The Authority has also contested the adequacy of the information provided by the Company to employees pursuant to Article 13 GDPR, regarding the processing of personal data carried out through the System. Specifically, it was highlighted that the information provided to employees through the notice regarding the possibility of identifying them was incorrect, on the assumption that employees had not been informed of the possibility of direct identification of the vehicle driver. However, this contestation appears unfounded in light of what was stated in the preceding paragraph";

- regarding the contested non-compliance of the processing carried out compared to the content of the authorization provision issued by the ITL, "the Company believes that this contestation also arises from a misunderstanding of the functioning of the System, and therefore must be considered unfounded." In fact, regarding the prescription according to which "data on the speed of the vehicle must be processed anonymously or in a manner that allows for the identification of the data subject only in case of necessity (authorization of the ITL par. 7)," "the methods of use of the System already provide that the identification of the data subject, i.e., the association between the vehicle and the driver, occurs only when an Anomalous Event takes place and in compliance with the security measures and procedures provided and [already] described";

- "Employees authorized to access the system containing directly identifiable data of employees driving vehicles are given clear instructions regarding the conditions under which they can access such data, with a prohibition on linking them to data collected through the System";

- "The System therefore does not allow for the viewing of data that could be considered excessive in relation to the pursued purposes."

In a communication dated 11/10/2024, the Company waived the hearing initially requested pursuant to

Article 18 of Law No. 689/1981.

4. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures referred to in Article 58, paragraph 2, of the Regulation.

As a result of the examination of the statements made by the party during the proceedings, as well as the documentation acquired, it has been established that the Company, as the data controller, entered into a contract with Tim S.p.a. for the rental of a GSM/GPRS device to be installed on company vehicles (specifically 50 tractors with trailers), with the consequent provision of web access credentials to Tim's IT platform.

The service, called Tim Your Way, is provided by Tim S.p.a. through the company WAY s.r.l., appointed as the data processor by Tim S.p.a., on behalf of and for the account of the data controller, pursuant to Article 28 of the Regulation.

Regarding the methods of processing carried out through the geolocation system, there are profiles of non-compliance with the regulations on the protection of personal data.

In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor."

4.1. Violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

Firstly, it is noted that, with the initiation of the sanctioning procedure, it was highlighted

****4.1. Inadequacy of the Information Provided by the Company****

It has been noted that the information prepared by the Company (and made available to its employees by posting it on the company bulletin board) was entirely inadequate to fully represent the processing carried out through the geolocation system. Contrary to what was believed, the aspect related to the direct identifiability of the drivers of the geolocated vehicles does not represent the only critical element identified; rather, various elements of non-compliance with the regulations on personal data protection have emerged.

It is worth clarifying that, in light of the definition of "personal data" ("any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person": Art. 4, No. 1 of the Regulation), the association of the device with the vehicle's license plate, even in cases where the driving of the vehicle is actually entrusted to different drivers who alternate, allows for the identification of the driver through association with other information (for example, documents related to service shifts). (On this specific aspect, see measures No. 396 of 28/06/2018, web document No. 9023246, and No. 247 of 24/05/2017, web document No. 6495708).

In this specific case, however, the Company has repeatedly stated that "as a rule, each [of the drivers] is assigned the same vehicle" and that "the data collected can be attributed to the employee user only while performing work activities. The association occurs through the interfacing of the new generation tachograph system used with the personal tachograph card provided to the drivers and the WAY system" (pages 3 and 4 of the minutes of 21/06/2022, as well as the note of 09/02/2022).

In contradiction to the above, the Company, in its defense submissions, stated that it had not activated the interfacing system and, therefore, had equipped itself with a database that allows for tracing the identity of the driver only in the event of anomalies, a circumstance that has not been demonstrated in any way during the investigation or during the inspection assessment.

The further argument presented, according to which the entry of a name into the system is a necessary condition for its correct functioning, also did not have documentary support following the investigation conducted at Way s.r.l. (documents of 24/10/2022).

In any case, regardless of the specific aspect of the direct identifiability of the drivers of the geolocated vehicles, the information provided presents numerous inconsistencies and typographical errors that

clearly reveal how it does not correspond to the processing actually carried out. For example, references to Astral S.p.A. as the entity where the data is collected (point 2 of the information), to "supervisory duties of company assets" and "access to recording systems," to data retention times indicated as 18 without further specification (point 4), and to the indication of Autotrasporti Cuccu Riccardo srl as "External Data Processor" (point 5).

Furthermore, it should be noted that the information does not fully represent the methods of processing carried out through the geolocation system, including, for example, the fact that data is collected continuously.

It is also stated that "the identification of the driver occurs (...) through a satellite RFID system that recognizes the pseudonymized ID of the user via company badges," whereas it has been established, from the examination of the documentation acquired during the investigation, that the geolocation system in use allows for the acquisition of location data, telemetry, and other types of data "through onboard devices equipped with GSM/GPRS modems with SIM Cards and GPS receivers" (contract signed with TIM and with Way regarding the Tim Your Way service).

Considering that, within the employment relationship, the obligation to inform the employee is an expression of the duty of fairness referred to in Art. 5, par. 1, lett. a) of the Regulation, the unlawfulness of the processing carried out through the inadequate information must be confirmed, in violation of Arts. 5, par. 1, lett. a) and 13 of the Regulation.

****4.2. Violation of Art. 5, par. 1, lett. a), c) and e), and 88 of the Regulation.****

In light of the findings from the investigation, it has emerged that the geolocation system in use at the Company was installed for the purposes of protecting company assets, workplace safety, and for organizational and production needs, as indicated in the authorization request submitted to the ITL of Cagliari-Oristano.

As established during the investigation, the concrete operational methods of the technological system used allow the Company, through the web platform provided by Way s.r.l., to acquire information regarding the vehicle's position, its status (i.e., whether it is on or off), telemetry, and, indirectly, also the activities of the drivers.

Such information is continuously acquired by the system, albeit with a delay of 3 to 5 minutes, and also includes breaks in work activity; it is retained for a period of 180 days.

That being said, it is observed that these methods of...
to the violations identified.

The processing appears to be excessive and disproportionate in relation to the declared purposes and objectives, which could legitimately be pursued through the processing of more limited information. In particular, the collection of detailed information (including the detection of location even during breaks in work activity) is suitable for carrying out continuous monitoring of employees' activities in violation of the principle of data minimization (art. 5, par. 1, lett. c) of the Regulation), which requires that the data collected be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed." Moreover, the Authority has often reiterated that the position of the vehicle should not be continuously monitored by the data controller, but only when necessary to achieve the legitimately pursued purposes (see provision no. 396 of 28/06/2018, web document no. 9023246).

Similarly, the retention of collected data for an extended period (equal to 180 days) is not compliant with the principles of minimization and data retention limitation (art. 5, par. 1, lett. c) and e) of the Regulation). Finally, it should be noted that the specific functionalities of the geolocation system described above do not comply with the specific guarantees provided by the authorization issued by the ITL of Cagliari Oristano on 19/05/2021, particularly regarding the non-continuous detection of the geolocated vehicle, the anonymization of the collected data, and the adoption of technological solutions that prevent "the possible processing of excessive, irrelevant, or disproportionate data in relation to the purposes pursued by the data controller."

The processing was therefore carried out in violation of what is provided for in the authorization provision and, consequently, is contrary to the principle of lawfulness of processing (art. 5, par. 1, lett. a) of the Regulation) in relation to art. 114 of the Code and art. 88 of the Regulation. For the above reasons, the illegality of the processing carried out is noted, as it was conducted in violation of arts. 5, par. 1, lett. a), c), and e) and 88 of the Regulation and art. 114 of the Code.

4.3. Violation of art. 157 of the Code. It should also be noted that in response to the request for information made by the Authority pursuant to art. 157 of the Code (note of 25/05/2022), no response was received within the indicated terms, despite the fact that it had been duly notified to the Company's PEC address. The Company, also informed of the consequences arising from the lack of response, knowingly omitted to provide the additional information that had been requested for the overall assessment of the matter subject to complaint. As it stated during the inspection, it deemed it unnecessary to respond to the Authority's request. This conduct necessitated a supplementary investigation that was delegated to the Privacy Protection Unit of the Guardia di Finanza. Considering that the arguments put forward are not sufficient to exclude the Company's liability, the violation of art. 157 of the Code must be confirmed.

5. Conclusions: declaration of the illegality of the processing. Corrective measures pursuant to art. 58, par. 2, of the Regulation. For the reasons stated above, the Authority believes that the statements made by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the archiving of this procedure, nor do any of the cases provided for in art. 11 of the Regulation of the Authority no. 1/2019 apply in relation to these aspects. The processing of personal data carried out by Autotrasporti Cuccu Riccardo S.r.l. is unlawful, as stated above, as it was carried out in violation of arts. 5, par. 1, lett. a), c), e), 13, 88 of the Regulation, 114 and 157 of the Code. Given the corrective powers conferred by art. 58, par. 2, of the Regulation, in light of the circumstances of the specific case, it is deemed necessary to prescribe the following corrective measures:

- prepare a notice suitable to fully represent the processing carried out through the geolocation system;
- align the processing with the guarantees prescribed by the authorization provision of the ITL of Cagliari Oristano, taking into account the principles of minimization and data retention limitation in relation to the specific purposes to be pursued.

Finally, it is believed that the conditions set forth in art. 17 of the Regulation of the Authority no. 1/2019 are met.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code). As a result of the procedure, it appears that Autotrasporti Cuccu Riccardo S.r.l. has violated arts. 5, par. 1, lett. a), c), and e), 13, 88 of the Regulation, 114 and 157 of the Code. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by art. 83 of the Regulation is foreseen. The Authority, pursuant to art. 58, par. 2, lett. i) of the Regulation and art. 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by art. 83 of the Regulation, through the adoption of an injunction order (art. 18. L. 24 November 1981 no. 689), in relation to the violations identified.

****Regarding the processing of personal data carried out by Autotrasporti Cuccu Riccardo S.r.l., which has been found to be unlawful, as outlined above.****

It is deemed necessary to apply paragraph 3 of art. 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction shall not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the

maximum penalty provided for by the same art. 83, par. 5. With reference to the elements listed in art. 83, par. 2, of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must “in any case [be] effective, proportionate, and dissuasive” (art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

- a) regarding the nature and severity of the violation, the nature of the violation concerning the general principles and obligations of the data controller has been deemed significant; concerning the duration of the violation, it has been considered that the processing began in 2021 and is still ongoing; it has also been considered that the processing involved, in addition to the complainant, other interested parties related to the vehicles subject to geolocation (approximately 50);
- b) with reference to the intentional or negligent character of the violation and the degree of responsibility of the controller, the conduct of the Company and its degree of responsibility have been taken into account, as it did not comply with the regulations regarding data protection, concerning multiple provisions regarding also the general principles of processing;
- c) the absence of previous relevant violations has been considered favorably.

It is also believed that the economic conditions of the offender, determined based on the turnover of the Company, as per the financial statements for the year 2023, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation). Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the above elements and the evaluations made, it is believed, in this case, to apply to Autotrasporti Cuccu Riccardo S.r.l. the administrative sanction of payment of an amount equal to 50,000.00 euros (fifty thousand).

In this context, it is also believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should be carried out. This is in consideration of the particularly harmful conduct towards the rights of the interested parties, which occurred in violation of the general principles regarding the protection of personal data.

****ALL OF THE ABOVE CONSIDERED, THE GUARANTOR****
pursuant to art. 57, par. 1, lett. f), of the Regulation, finds the unlawfulness of the processing carried out by Autotrasporti Cuccu Riccardo S.r.l. in

the person of the legal representative pro tempore, with registered office in Elmas (CA), Via delle Miniere n. 22, P.I. 02661390928, for the violation of arts. 5, par. 1, lett. a), c), e), 13, 88 of the Regulation, 114 and 157 of the Code; pursuant to art. 58, par. 2, lett. d), of the Regulation, orders the Company to comply, within 60 days from the date of notification of this provision, with the prescriptions set forth in par. 5 of this decision, while also requesting to provide, within the aforementioned term, an adequately justified response pursuant to art. 157 of the Code; any failure to respond may result in the application of the administrative pecuniary sanction provided for by art. 83, par. 5, lett. e) of the Regulation;

****ORDERS****

pursuant to art. 58, par. 2, lett. i) of the Regulation to the same Company to pay the sum of 50,000.00 euros (fifty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

****ORDERS****

therefore the same Company to pay the aforementioned sum of 50,000.00 euros (fifty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981.

It is noted that pursuant to art. 166, paragraph 8 of the Code, the offender retains the right to resolve the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the sanction imposed within the term provided for by art. 10, paragraph 3, of legislative decree no. 150 of September 1, 2011, for the filing of the appeal as indicated below.

****DISPOSES****

pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of the injunction order on the Guarantor's website;

pursuant to art. 154-bis, paragraph 3, of the Code and art. 37 of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the Guarantor's website;

pursuant to art. 17 of Regulation no. 1/2019, the annotation of the violations and the measures.

adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be brought before the ordinary judicial authority, with a petition filed at the ordinary court of the location identified in the same Article 10, within thirty days from the date of communication of the provision itself, or within sixty days if the

appellant resides abroad.

Rome, January 16, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei